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Case Number: NAIH-3076-14/2024.
Subject: Decision establishing a violation
Case Officer: [...]

H A T Á R O Z A T

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) has made the following decisions in the official data protection authority procedure initiated ex officio regarding the examination of the complaint submitted by [...] (email address: [...]; hereinafter: Complainant) concerning the fulfillment of the deletion request against [...] (headquarters: [...]; company registration number: [...]; tax number: [...]; legal representative: [...]) (headquarters: [...]; tax number: [...]; acting attorney: [...]) and [...] (headquarters: [...], acting attorney: [...]); hereinafter: Client) in connection with compliance with the provisions of Regulation (EU) 2016/679 (hereinafter: General Data Protection Regulation) on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, as well as the repeal of Directive 95/46/EC.

1. The Authority establishes that the Client has violated Article 6(1)(a), Article 12(3), and Article 25(1) of the General Data Protection Regulation, therefore the Client is held liable.
2. The Authority instructs the Client to inform the Complainant within 30 days from the receipt of this decision about the measures taken regarding the deletion of the Complainant's email address from the newsletter database, in accordance with the reasoning of the decision.

The Client must provide written proof of the measures prescribed in point 2 within 30 days from the receipt of this decision, along with supporting evidence, to the Authority.

In case of non-compliance with the obligation set out in point 2, the Authority will order the enforcement of the decision.

No administrative remedy is available against this decision, but it can be contested in an administrative lawsuit by submitting a statement of claim addressed to the Metropolitan Court within 30 days from the communication of the decision. The statement of claim must be submitted electronically to the Authority, which will forward it along with the case documents to the court. A request for a hearing must be indicated in the statement of claim. For those not entitled to full personal exemption from fees, the administrative lawsuit fee is HUF 30,000, and the subject matter of the lawsuit is subject to fee recording. Legal representation is mandatory in the proceedings before the Metropolitan Court.

1 The form for initiating the administrative lawsuit is called NAIH_K01: NAIH_K01 form (2019.09.16.)
The form can be filled out using the general form filling program (ÁNYK program).

The form is available at the following link: <https://naih.hu/kozig-hatarozat-birosagi-felulvizsgalata>

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INTRODUCTION

I. Background

(1) A notification was received by the Authority on December 16, 2020, through the Romanian data protection authority, in which the Complainant stated that they had attempted multiple times to unsubscribe from the Client's newsletter by clicking the unsubscribe button at the end of the email, but nevertheless continued to receive the Client's newsletter. The Complainant also indicated to the Client on September 29, 2019, by filling out the appropriate form on the Client's website, that they did not

wish to receive newsletters in the future. According to the Complainant's statement, on October 17, 2019, they received a response from the Client's data protection officer at the [...] email address, stating that in accordance with their request—referring to Article 17(1)(b) of the General Data Protection Regulation—their email address had been removed from the newsletter database, they had been unsubscribed from the newsletters, and they would not receive newsletters related to the Client's services in the future. Nevertheless, the Complainant continued to receive newsletters, for example, on October 26, October 29, and November 1, 2019.

(2) On December 11, 2020, the Romanian data protection authority initiated a procedure under Article 56 of the General Data Protection Regulation to identify the lead and concerned supervisory authorities. Considering that the Client's place of activity is located at [...] and that it conducts cross-border data processing, as well as that decisions regarding the purposes and means of personal data processing within the Client's organization are made in Hungary, the Client's activity center is located in Hungary. Therefore, in accordance with point b) of Article 4(23) and point a) of Article 4(22) of the General Data Protection Regulation, the Authority is entitled to act as the lead authority.

(3) An investigation was initiated regarding the contents of the Complainant's notification based on point f) of Article 57(1) of the General Data Protection Regulation, as well as point a) of Section 38(3) of Act CXII of 2011 on the Right to Informational Self-Determination and Freedom of Information (hereinafter: Infotv.), under case number NAIH-1478/2021, during which the Authority called upon the Client to provide statements on several occasions.

(4) During its investigation, the Authority concluded that a violation of rights had occurred concerning the processing of personal data and that a fine should be imposed based on the provisions of the General Data Protection Regulation. Therefore, the investigation was closed based on point ab) of Section 55(1) of the Infotv., and a data protection authority procedure was initiated ex officio in the matter on February 1, 2024, under case number NAIH-3076/2024.

II. Procedure

(5) In its decision dated February 1, 2024, under case number NAIH-3076-1/2024, the Authority informed the Client about the initiation of the data protection authority procedure on that date and called upon the Client to provide a statement, in which the Client was also asked whether they maintain their statements made in the data protection investigation procedure initiated under case number NAIH-1478/2021 and whether they wish to supplement them.

(6) The Client responded in letters received on February 21, 2024, registered under case number NAIH-3076-2/2024, and on February 26, 2024, registered under case number NAIH-3076-3/2024.

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(7) The Authority also prepared a record on February 27, 2024, under case number NAIH-3076-4/2024, regarding the fact-finding that the entire documentation of the investigation initiated under number NAIH-1478/2021 related to the present case will be used in the decision-making process, which documentation constitutes an annex to the record.

III. Clarification of the Facts

(8) Based on the documentation of the investigation under number NAIH-1478/2021, the Client processed the Complainant's [...] email address in connection with the investigation, the legal basis for this data processing being the fulfillment of a legal obligation.

(9) Furthermore, the Complainant has a registered [...] account with this email address, the legal basis and purpose of which is the fulfillment of the terms of use of the [...] account as a concluded contract with the Complainant. The Complainant did not otherwise utilize the Client's travel services. The Client processed the Complainant's email address for the purpose of sending newsletters based on the Complainant's prior consent; however, in light of the findings of the internal investigation conducted in connection with the present case, the Complainant's email address was unsubscribed from the systems that send newsletters by the Client's IT service provider partners, therefore the Client no

longer conducts such data processing.

(10) According to the Client's statement, the Complainant has an active [...] user account, therefore the Client did not delete the email address but ceased the processing of this personal data for newsletter purposes.

(11) According to the Client's statement, an internal investigation was conducted, which established that although the online unsubscription process occurred each time the Complainant unsubscribed, the Client unsubscribed the Complainant's email address – following their request – as stated in the confirmation sent to the Complainant, and the related events were logged in the associated system; however, these online unsubscription requests did not reach the system that sends the newsletters, the [...] system, due to a technical error, and therefore the Complainant's email address was recorded in the [...] system as having an active subscription between July 30, 2019 (the date of the Complainant's first unsubscription) and May 11, 2021 (the date of the last newsletter sent to the Complainant).

(12) To uncover the causes of the technical problem mentioned above, the Client involved the manufacturer of the [...] system. Based on feedback received from the [...] manufacturer during the internal investigation, the Client established that the consent associated with the Complainant's email address was manually changed on June 8, 2017, by an unknown person in the previous [...] system – presumably due to an individual oversight.

(13) According to the Client's statement, at the time of the incident, the database managing newsletter subscriptions was the [...] system, and all modifications were carried out by the Client on the [...] data. This meant that due to this manual intervention, the unsubscription in the system managing the newsletter subscriptions named [...] did not proceed to the [...] system and did not cause any change regarding the unsubscription. This may explain why the Complainant was unable to effectively unsubscribe from the Client's newsletters, and why the deletion executed by the Client did not appear in the [...] system. The manufacturer of the [...] system could not provide further information, and in this regard, the Client could not conduct any further substantive investigation, thus concluding it partially unsuccessfully. The Client sent the email correspondence summarizing the results of the internal investigation to the Authority. In summary of its results, the Client noted the period between July 30, 2019 (the date of the Complainant's first unsubscription) and May 11, 2021 (the date of the last newsletter sent to the Complainant).

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During the period between (date) and (date), newsletters were sent to the Complainant due to a technical error. The cause of this technical error was an incident that occurred on June 8, 2017, which the Client's internal investigation could only partially uncover due to the passage of time, personnel changes, and system replacement that had already occurred by 2021. The Client wished to emphasize that this was a unique complaint case, the Client corrected the error, and since that time, the [...] system is no longer used for sending newsletters.

(14) The Client also submitted the correspondence between itself and the Complainant in Romanian, along with its unofficial English translation, to the Authority. Based on the internal investigation conducted, the Client established that the Complainant modified the newsletter subscription status through the Client's online function at the following times:

- 30/07/2019 16:34
- 30/07/2019 16:35
- 20/09/2019 23:22
- 17/10/2019 15:12
- 04/11/2019 00:12

(15) In the current data protection authority procedure, the Client presented the following in its letters received on February 21, 2024, registered under case number NAIH-3076-2/2024, and on February 26, 2024, registered under case number NAIH-3076-3/2024:

(16) The Client maintained its statements made during the investigation procedure, stating that the Complainant's [...] email address registered with the [...] account is still active, and the Complainant has not sent any further complaints or comments to the Client regarding the matter subject to the current procedure.

(17) The Client further maintained that it does not carry out data processing concerning the Complainant in relation to the newsletter sending services after fulfilling the Complainant's unsubscribe request. The Client conducted the necessary investigation regarding the technical error of the system that sends the newsletters, and after concluding the investigation, it was determined that the technical error occurred with only one affected individual, thus the problem was not systemic. Furthermore, the Client is not aware of any damage incurred on the part of the Complainant, and no similar incidents have occurred since the conclusion of the investigation.

(18) To clarify its financial situation, the Client submitted its annual reports closing the general business years for the periods from April 1, 2020, to March 31, 2021, from April 1, 2021, to March 31, 2022, and from April 1, 2022, to March 31, 2023, to the Authority.

IV. Applicable Legal Provisions

(19) According to Section 2 (2) of the Infotv., the General Data Protection Regulation shall be applied to data processing falling under its scope with the supplements specified in the provisions indicated therein.

(20) Pursuant to Section 60 (3) of the Infotv., the Authority shall initiate a data protection authority procedure ex officio if it establishes, based on its investigation, that a legal infringement has occurred in relation to the processing of personal data or that there is a direct risk thereof, and that a fine is warranted under the provisions of the General Data Protection Regulation.

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(21) According to Section 7 of Act CL of 2016 on General Administrative Procedure (hereinafter: Ákr.), the provisions of the Ákr. shall apply to the data protection authority procedure. According to Section 103 (1) of the Ákr., in an authority procedure initiated ex officio, the provisions of the Ákr. concerning procedures initiated upon request shall be applied with the deviations specified in Sections 103 and 104 of the Ákr.

(22) According to Article 4(1) of the General Data Protection Regulation: "personal data": any information relating to an identified or identifiable natural person ("data subject"); an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.

(23) According to Article 4(2) of the General Data Protection Regulation: "processing": any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction.

(24) According to Article 4(7) of the General Data Protection Regulation: "controller": the natural or legal person, public authority, agency, or any other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union or Member State law, the controller or the specific criteria for the designation of the controller may also be provided for by Union or Member State law.

(25) According to Article 4(11) of the General Data Protection Regulation: "the data subject's consent": any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which he or she, by a statement or by a clear affirmative action, signifies agreement to the processing of personal data relating to him or her.

(26) According to Article 6(1)(a) of the General Data Protection Regulation: "The processing of personal data shall be lawful only if and to the extent that at least one of the following applies:
a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes.

(27) According to Article 7(3) of the General Data Protection Regulation: "The data subject shall have the right to withdraw his or her consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. The data subject shall be informed of this before giving consent. It shall be as easy to withdraw consent as to give it."

(28) According to Article 12(3) of the General Data Protection Regulation, the controller shall provide the data subject with information on actions taken in response to a request under Articles 15 to 22 without undue delay and in any event within one month of receipt of the request. If necessary, taking into account the complexity of the request and the number of requests, this period may be extended by a further two months. The controller shall inform the data subject of any such extension within one month of receipt of the request, together with the reasons for the delay. If the data subject has made the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests otherwise.

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(29) According to Article 17(1)(b) of the General Data Protection Regulation, the data subject has the right to request the controller to erase personal data concerning them without undue delay, and the controller is obliged to erase personal data concerning the data subject without undue delay if any of the following grounds apply:

b) the data subject withdraws their consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing.

(30) According to Article 25(1) of the General Data Protection Regulation, the controller shall, taking into account the state of science and technology and the costs of implementation, as well as the nature, scope, circumstances, and purposes of the processing, and the risks to the rights and freedoms of natural persons, which are variable in likelihood and severity, implement appropriate technical and organizational measures – such as pseudonymization – that are designed to effectively implement the data protection principles, such as data minimization, and to integrate the necessary safeguards into the processing to ensure compliance with the requirements of this Regulation and the protection of the rights of data subjects.

(31) According to Article 58(2) of the General Data Protection Regulation, the supervisory authority, in exercising its corrective powers, may for example:

b) impose an administrative fine on the controller or processor if their processing activities have infringed the provisions of this Regulation;

c) order the controller or processor to comply with the data subject's requests to exercise their rights under this Regulation;

d) order the controller or processor to bring processing operations into compliance with the provisions of this Regulation – in a specified manner and within a specified time frame, where appropriate.

(32) According to Section 71(2) of the Infotv.: "The Authority may use documents, data, or other evidence lawfully obtained during its proceedings in other proceedings."

V. Decision

(33) Based on the definitions in the General Data Protection Regulation, the complainant's email address is considered personal data, and any operation performed on personal data, including its use for sending newsletters, is classified as data processing.

(34) In this case, the complainant objected that on September 29, 2019, they indicated to the client via the designated form on the client's website that they do not wish to receive newsletters in the future. In response, on October 17, 2019, the complainant received a reply from the client's data protection officer at the [...] email address, stating that in accordance with their request – referring to Article

17(1)(b) of the General Data Protection Regulation – their email address had been deleted from the newsletter database, they had been unsubscribed from the newsletters, and they would not receive newsletters related to the client's services in the future. Nevertheless, the complainant continued to receive newsletters, for example, on October 26, October 29, and November 1.

(35) According to Article 17(1)(b) of the General Data Protection Regulation, the data subject has the right to request the controller to erase personal data concerning them without undue delay, and the controller is obliged to erase personal data concerning the data subject without undue delay if the data subject...

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withdraws its consent as the basis for data processing under Article 6(1)(a) or Article 9(2)(a), and there is no other legal basis for the data processing.

(36) The Client – as acknowledged by itself – processed the Complainant's email address for the purpose of sending newsletters based on the Complainant's prior consent, which, according to the Client's statement, was given before the General Data Protection Regulation became applicable.

(37) The Authority did not examine the legality of the Complainant's prior consent in this procedure, nor its compliance with the General Data Protection Regulation following its applicability, but rather how the Client complied with the Complainant's request that the Client not process the email address for newsletter purposes.

(38) The Complainant attempted several times to unsubscribe from the Client's newsletter by clicking the unsubscribe button at the end of the email, and also indicated to the Client on September 29, 2019, by filling out the appropriate form on the Client's website, that they did not wish to receive newsletters in the future, expressing that they were withdrawing their previously given consent for the use of their email address for newsletter purposes.

(39) Despite this, and despite the information sent by the Client to the Complainant – also acknowledged by the Client, due to a technical error – the Client continued to use the Complainant's email address for newsletter purposes, for example, on October 26, October 29, and November 1, 2019.

(40) Regarding the email address that was previously processed based on the Complainant's consent, the definition of consent under Article 6(1)(a) of the General Data Protection Regulation must be based on adequate information as defined by the General Data Protection Regulation, must be voluntary, and must be expressed through a specific, clear act that unequivocally indicates the will of the data subject.

(41) An additional requirement is that in the case of data processing based on consent – considering Article 7(3) of the General Data Protection Regulation – it must be ensured that the data subject can withdraw their consent at any time in the same simple manner as they provided their consent, and in this regard, they are also entitled – in accordance with Article 17(1)(b) of the General Data Protection Regulation – to have their personal data erased without undue delay by the data controller.

(42) Among these requirements, the Authority in this procedure – not examining the main circumstances related to the granting of consent and the compliance with the General Data Protection Regulation following its applicability as described above – investigated how the Client ensured the requirement under Article 7(3) of the General Data Protection Regulation concerning the ability of the data subject to withdraw their consent at any time in the same simple manner as they provided their consent.

(43) In this case, it can be established that the Client used the Complainant's email address for the purpose of sending newsletters based on the Complainant's prior – assumed – consent, which the Complainant attempted to withdraw multiple times, in various forms – through unsubscribing and then submitting a separate form – unsuccessfully, according to the Client's statement, at the following times:

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- 30/07/2019 16:35
- 20/09/2019 23:22
- 17/10/2019 15:12
- 04/11/2019 00:12

(44) Notwithstanding all of this, the Complainant received a newsletter on May 11, 2021, at their email address.

(45) Based on this, it can be established that the Client, after the Complainant expressed multiple times and in various forms that they withdraw their consent for the Client to process their email address for the purpose of sending newsletters, processed the Complainant's personal data – their email address – for sending newsletters without the Complainant's consent, i.e., without an appropriate legal basis, thereby violating Article 6(1)(a) of the General Data Protection Regulation after the Complainant withdrew their consent. This unlawful situation existed during the period from the date of the Complainant's first unsubscribe request, namely July 30, 2019, to the date of the last newsletter sent to the Complainant, namely May 11, 2021.

(46) Although the Complainant did not submit a request for the deletion of their personal data to the Client, the Client classified the Complainant's requests to unsubscribe from newsletters as a deletion request and accordingly informed the Complainant that their email address had been deleted from the newsletter database, thus they would not receive newsletters in the future.

(47) Nevertheless, as confirmed by documents, the Client did not actually delete the Complainant's email address, and the Complainant continued to receive several newsletters despite this notification, which was due to a technical error that occurred in the system named [...] used by the Client for sending newsletters. This was revealed by an internal investigation conducted by the Client, and the correspondence related to this investigation was provided to the Authority by the Client.

(48) Based on this, it can be established that the Client responded to the Complainant's request regarding the processing of their personal data – their email address – sent on September 29, 2019, within the one-month deadline, on October 17, 2019. In this regard, the Client did not commit a violation and did not breach Article 12(3) of the General Data Protection Regulation, as they informed the Complainant about the measures taken concerning their request within the deadline.

(49) However, the Client provided incorrect information regarding the measure, and contrary to their notification, did not delete the Complainant's email address from the newsletter database, continuing to process it for sending newsletters, as the Complainant continued to receive electronic messages. Therefore, the Authority finds that the Client violated Article 12(3) of the General Data Protection Regulation by providing incorrect information about the measures they took.

(50) Based on the information available to the Authority, it can also be established that the Client did not inform the Complainant about when they actually deleted their email address from the newsletter database. In this regard, the Client also violated Article 12(3) of the General Data Protection Regulation. In light of this, it is necessary for the Client to provide information to the Complainant regarding the measures taken to fulfill the deletion request.

(51) As a reason for the improper deletion of personal data, the Client referred to a technical error that occurred in the system named [...] used for sending newsletters.

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(52) In this regard, Article 25(1) of the General Data Protection Regulation stipulates that the data controller must implement effective technical and organizational measures to ensure compliance with the provisions of the General Data Protection Regulation. According to the recital (59) of the General Data Protection Regulation, the data controller must also establish procedures and operate IT systems that adequately ensure the fulfillment of data subject requests, in this case, the withdrawal of consent and the deletion of personal data.

(53) According to recital (59) of the General Data Protection Regulation, measures must be provided to

facilitate the exercise of the rights granted to data subjects under the General Data Protection Regulation, including the provision of mechanisms that allow the data subject to request, free of charge, and, where applicable, obtain access to personal data, their rectification and deletion, as well as to exercise their right to object. Accordingly, the data controller must provide tools that enable the electronic submission of requests, especially if the processing of personal data is carried out electronically. The data controller is obliged to respond to the data subject's request without undue delay, but no later than within one month, and if the data controller does not comply with any request from the data subject, it must justify this.

(54) However, citing a technical error does not exempt the Client from liability as a data controller. Consequently, in this case, the Client must use software that effectively enables the deletion of personal data, even if, according to its statement, the issue did not affect multiple individuals. Furthermore, the system must also be capable of allowing the data subject to unsubscribe directly from unwanted newsletters. This is particularly important for a data controller with a large number of clients, such as the Client.

(55) Based on all of the above, the Authority establishes ex officio that the Client, by using a system that it acknowledged to have long-standing technical problems, which resulted in the failure to delete the Complainant's email address from the Client's newsletter database, did not take the necessary technical measures to ensure the fulfillment of data subject requests, thereby violating Article 25(1) of the General Data Protection Regulation during the period between the date of the Complainant's first unsubscribe request, namely July 30, 2019, and the date of the last newsletter sent to the Complainant, namely May 11, 2021.

(56) At the same time, considering that during the data protection authority procedure, the Client stated that it deleted the Complainant's email address from the newsletter database, and that since the incident, it no longer uses the [...] system for sending newsletters, no further action is required regarding the deletion of the Complainant's email address.

VI. Legal Consequences

(57) The Authority, in the ex officio initiated data protection authority procedure, establishes based on Article 58(2)(b) of the General Data Protection Regulation that the Client violated Article 6(1)(a) of the General Data Protection Regulation during the period between the date of the Complainant's first unsubscribe request, namely July 30, 2019, and the date of the last newsletter sent to the Complainant, namely May 11, 2021, as well as Article 12(3) and Article 25(1).

(58) The Authority, in the ex officio initiated data protection authority procedure, instructs the Client based on Article 58(2)(c) of the General Data Protection Regulation to...

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Inform the Complainant of the measures taken regarding the deletion of their email address from the newsletter database, as well as the fact of the actual deletion, in accordance with Article 12 of the Data Protection Regulation.

(59) Based on all of the above, the Authority has decided as stated in the operative part.

VII. Other Questions:

(60) The Authority's jurisdiction is defined by Section 38 (2) and (2a) of the Infotv., and its competence extends to the entire territory of the country.

(61) The Authority's current decision is based on Sections 80-81 of the Ákr. The decision becomes final upon its communication in accordance with Section 82 (1) of the Ákr. Pursuant to Section 112 of the Ákr., and Section 116 (1) and (4) d) of the Ákr., as well as Section 114 (1) of the Ákr., there is a right to legal remedy against the decision through administrative litigation.

* * *

(62) The rules of administrative litigation are defined by Act I of 2017 on Administrative Litigation

(hereinafter: Kp.). According to Section 12 (1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and based on Section 13 (3) a) aa) of the Kp., the Metropolitan Court is exclusively competent for the case. According to Section 27 (1) b) of the Kp., in a legal dispute where the court is exclusively competent, legal representation is mandatory. According to Section 39 (6) of the Kp., the submission of the statement of claim does not have a suspensive effect on the enforcement of the administrative act.

(63) Section 29 (1) of the Kp. applies, and in this regard, Section 604 of Act CXXX of 2016 on Civil Procedure is applicable, and according to Section 19 (1) b) of Act CIII of 2023 on Digital State and Certain Rules of Providing Digital Services, the client's legal representative is obliged to maintain electronic communication.

(64) The time and place for submitting the statement of claim are determined by Section 39 (1) of the Kp. Information regarding the possibility of requesting a hearing is based on Sections 77 (1)-(2) of the Kp.

(65) The amount of the administrative litigation fee is determined by Section 45/A (1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The party initiating the proceedings is exempt from the advance payment of the fee under Section 59 (1) and Section 62 (1) h) of the Itv.

(66) If the Client does not properly prove the fulfillment of the prescribed obligation, the Authority will consider that the Client has not fulfilled their obligation within the deadline. According to Section 132 of the Ákr., if the Client does not comply with the obligation stated in the Authority's final decision, it is enforceable. The Authority's decision becomes final upon communication according to Section 82 (1) of the Ákr. According to Section 133 of the Ákr., the enforcement is ordered by the authority that made the decision, unless otherwise provided by law or government decree. According to Section 134 of the Ákr., the enforcement is carried out by the state tax authority unless otherwise provided by law, government decree, or a local government regulation in a matter of local government authority. According to Section 61 (7) of the Infotv., regarding the obligation to perform a specific act, to behave in a certain way, to tolerate, or to cease an action as stated in the Authority's decision, the enforcement of the decision is carried out by the Authority.

Budapest, December 13, 2024.

Dr. habil. Attila Péterfalvi

President

Professor Emeritus